

SENATE BILL

NO. 64

Introduced by Senator Arreguín

September 28, 2025

An act to amend Chapter 732, Section 2 of the Health and Safety Code, along with the Education code, Division 3 Local Administration, Part 25 Employees, Chapter 1 Employees. In regards to the prioritization of occupancy to school district employees and designated social workers in affordable rental housing land that reside upon school-district owned land, which receive allocated local or state funds or tax credits.

LEGISLATIVE COUNSEL'S DIGEST

SB-64, as introduced, Arreguín, The Prioritized Applicants of Affordable Housing Units on School-District Owned Land.

The original Education code, intended to target smaller school districts around California, was given the ability to contract social workers as counselors within schools, as well as within the homes of pupils.

The amendment enforces that the listed governing board school districts hold the obligation of contracting qualified social workers within schools and affordable housing units located on school district owned lands. While reinforcing a social workers job to provide quality resources for all school district members, students, and families.

The original Health and Safety code policy permits school districts and developers receiving local or state funds, or tax credits designated for affordable rental housing units on school district land the ability to prioritize and restrict occupancy of teachers, school district employees, and nonprofit organization employees, so long as such housing does not violate any other applicable laws.

The amendment revokes school districts and developers the ability to restrict affordable rental housing to teachers, school district employees, and nonprofit organization employees on the basis of their employment. Additionally, requiring such affordable housing units to prioritize social workers employed within designated school districts.

Ultimately, providing school district members, along with designated social workers with the opportunity to benefit from affordable housing units funded by local or state funds, or tax credits. While establishing a public safety resource within such affordable housing units, providing accessibility to all housing residents.

VOTE: 2/3rds APPROPRIATIONS: yes FISCAL COMMITTEE: yes LOCAL PROGRAM: no

THE PEOPLE OF THE STATE OF CALIFORNIA DO ENACT AS FOLLOWS:

EDUCATION CODE - EDC

TITLE 2. ELEMENTARY AND SECONDARY EDUCATION [33000 - 65001] (Title 2 enacted by Stats. 1976, Ch. 1010.)

DIVISION 3. LOCAL ADMINISTRATION [35000 - 45500] (*Division 3 enacted by Stats. 1976, Ch. 1010.*)

PART 25. EMPLOYEES [44000 - 45500] (*Part 25 enacted by Stats. 1976, Ch. 1010.*)

CHAPTER 1. Employees [44000 - 44114] (*Chapter 1 enacted by Stats. 1976, Ch. 1010.*)

ARTICLE 2. Rights and Duties [44030 - 44050] (*Article 2 enacted by Stats. 1976, Ch. 1010.*)

44046.

(a) The governing board of ~~a small school district~~ all designated K-12 public school districts, which does not employ persons charged with school-community duties of counseling students and parents or guardians in their homes, ~~may~~ will contract with any qualified social service agency or organization to secure the services, on a part-time or full-time basis, of qualified social workers as counselors in schools, district-allocated affordable housing units, and in the homes of pupils. The State Board of Education shall adopt rules and regulations for the implementation of this section, but such social workers shall not be required to hold credentials or certification documents otherwise required under this code for service in the public schools. Nevertheless, such social workers will provide proper access to resources regarding the safety of all children, families, and faculty members.

(b) Social workers authorized to serve under this section, ~~as well as credentialed school social workers in districts other than small school districts, may perform, but are not limited to,~~ will abide by the performance of the following service to children, parents, school personnel, and community agencies:

- (1) Group and individual counseling and casework with parents and children relating to learning and adjustment problems of children, including parent education.
- (2) Liaison with community resources offering services to schoolchildren and their families.
- (3) Consultation with parents and others in crisis situations, such as truancy, drug abuse, suicide threats, assaults, and child abuse.
- (4) Assessment of social and behavioral disabilities affecting learning, including but not limited to case study evaluation, recommendations for remediation or placement, and periodic reevaluation.
- (5) Participation in and coordination of staff development programs for professional, paraprofessional, and classified school staff and supervision of pupil personnel services workers.
- (6) Coordination of social service and mental health components of children's centers and other early childhood development programs in the public schools.
- (7) Consultation and collaboration with school personnel to promote a school environment responsive to the needs of children and the planning of educational programs which will prepare children to function in a culturally diversified society.

(c) Distribution of state or local funds or tax credits designated towards establishing public safety resources within affordable housing units on school-district owned land, will be required within the districts listed below:

Los Angeles Unified School District - 1,438 public schools

Oakland Unified School District - 80 public schools

River Delta Unified School District - 14 public schools

Fresno Unified School District - 106 public schools

Sacramento City Unified School District - 81 public schools

Cutler-Orosi Joint Unified School District - 11 public schools

These districts are all categorized as high-poverty areas, where educators are underpaid compared to their average standard of living cost.

- California's average teacher salary ranges from \$52,995 to \$88,508 annually

Section 2.

(a) Across California public school districts, every 250 students must have at least 1 delegated social worker/counselor.

(b) The average range of units within an affordable housing unit is between 50 units to 400 units.

- (1) We will take the median of 250 units per affordable housing unit building, totaling to 500 people per building.
 - Our affordable housing units house an average of 500 people, with the average of 2 people per bedroom/unit.
- (2) A minimum of 2 social workers will be allocated to provide resources, establish safety, and live within such affordable housing units. So long as such housing does not violate any other applicable laws. .

(c) Across these school districts, we currently have a recorded 214 affordable housing units developed on school-districted owned land.

- (1) 214 housing units multiplied by the average number of 500 occupying residents per housing unit, equals to 107,000 affected people.
- (2) The designated 214 housing units, which house 500 residents in each, requires a minimum of 2 social workers per unit.
 - Reestablishing the ratio of 1 social worker/counselor to each 250 students required within public school districts.
 - A total of 428 social workers were needed, in order to house a minimum of 2 social workers within affordable housing units on school-district owned land.
- (3) The average annual salary of a Child, Family, and School social worker within California is \$58,570.
 - Multiply the average salary of Child, Family, and School social workers \$58,570, by the minimum of 428 social workers needed. Which equals to \$25,000,000.

(g) The budget for the entirety of this bill is \$25,000,000, yet funds will be divided and allocated over the course of two years.

- (1) For the first fiscal year, \$12,000,000 will be used to target half of the school districts mentioned in Section C, which are:

Oakland Unified School District - 80 public schools

Fresno Unified School District - 106 public schools

River Delta Unified School District - 14 public schools

- 99 affordable housing units on school district owned land will be affected, therefore a minimum of 198 social workers will be contracted among these three districts

- (2) The second fiscal year, \$13,000,000 will be used to target the remaining three school districts of:

Los Angeles Unified School District - 1,438 public schools

Sacramento City Unified School District - 81 public schools

Cutler-Orosi Joint Unified School District - 11 public schools

- 115 affordable housing units on school district owned land will be affected, therefore a minimum of 230 social workers will be contracted among these three districts

(f) Social workers will only be required within affordable housing units within delegated districts that wish to establish affordable housing units upon public, school-district owned land.

~~(c) As used in this section "small school district" means any of the following school districts:~~

~~(1) A unified school district having an average daily attendance of less than 1,501.~~

~~(2) A high school district having an average daily attendance of less than 301.~~

~~(3) An elementary school district having an average daily attendance of less than 901.~~

HEALTH AND SAFETY CODE - HSC

DIVISION 31. HOUSING AND HOME FINANCE [50000 - 54913] (*Division 31 repealed and added by Stats. 1977, Ch. 610.*)

PART 14. Teacher Housing Act of 2016 [53570 - 53574] (*Part 14 added by Stats. 2016, Ch. 732, Sec. 2.*)

53574.

This part specifically creates a state policy supporting housing for teachers, school district employees, ~~and~~ nonprofit organization employees, **and designated social workers** as described in Section 42(g)(9) of the Internal Revenue Code, and, further, permits school districts and developers in receipt of local or state funds or tax credits designated for affordable rental housing ~~to restrict~~ **to prioritize** occupancy to teachers, school district employees, ~~and~~ nonprofit organization employees, **and designated social workers** on land owned by school districts, including permitting school districts and developers in receipt of tax credits designated for affordable rental housing to retain the right to prioritize ~~and restrict~~ occupancy on land owned by school districts to teachers and school district employees of the school district that owns the land, ~~and~~ to nonprofit organization employees, **and designated social workers**, so long as that housing does not violate any other applicable laws.

Section 2.

(a) Designated social workers; referring to social workers employed by the school districts to provide public safety resources to school district employees, students, and families within affordable housing units on school-district owned land. Only employed social workers have priority to affordable housing units.